

Amendment of section 48R

25. Section 48R of the principal Act, as inserted by section 23, is amended —

- (a) by deleting the words “High Court” wherever they appear in subsections (1), (3) and (4) and substituting in each case the words “General Division of the High Court”;
- (b) by deleting subsection (5); and
- (c) by deleting the words “High Court” in the section heading and substituting the words “General Division of High Court”.

Amendment of section 50

26. Section 50 of the principal Act is amended —

- (a) by deleting the words “whether an organisation is not complying with this Act” in subsection (1) and substituting the words “whether or not an organisation or a person is complying with this Act, including a voluntary undertaking given by the organisation or person under section 48L(1)”;
- (b) by deleting the words “section 27(2)” in subsection (3)(a) and substituting the words “section 48G(2)”;
- (c) by inserting, immediately after paragraph (c) of subsection (3), the following paragraph:

“(ca) the Commission accepts a voluntary undertaking given by an organisation or a person under section 48L(1) in relation to the matter;”;
- (d) by inserting, immediately after subsection (3), the following subsection:

“(3A) To avoid doubt, despite subsection (3)(ca), the Commission may conduct or resume an investigation under this section at any time if an organisation or a person fails to comply with a voluntary undertaking given by the organisation or person under section 48L(1) in relation to any matter.”.

Amendment of section 51

27. Section 51 of the principal Act is amended —

- (a) by deleting subsection (1) and substituting the following subsections:

“(1) A person shall be guilty of an offence if the person —
(a) makes a request under section 21(1) to obtain

access to personal data about another individual without the authority of that other individual;

- (b) makes a request under section 22(1) to change personal data about another individual without the authority of that other individual; or
- (c) subject to subsection (1A), gives a porting organisation a data porting request under section 26H(1) to transmit personal data about another individual to a receiving organisation without the authority of that other individual.

(1A) Subsection (1)(c) does not apply to an individual who gives a data porting request under section 26H(1), in the individual's personal or domestic capacity, to transmit any user activity data or user-provided data about the individual even though the user activity data or user-provided data (as the case may be) includes personal data about another individual.”;

- (b) by deleting the word “or” at the end of paragraph (b) of subsection (3), and by inserting immediately thereafter the following paragraphs:

“(ba) without reasonable excuse, neglects or refuses to provide any information or produce any document which the organisation or person is required by or under this Act to provide or produce to the Commission or an inspector;

(bb) without reasonable excuse, neglects or refuses to attend before the Commission or an inspector as required by or under this Act; or”;

- (c) by inserting, immediately after “\$5,000” in subsection (4)(a), the words “or to imprisonment for a term not exceeding 12 months or to both”; and
- (d) by inserting, immediately after subsection (5), the following subsection:

“(6) An organisation or a person that commits an offence under subsection (3)(ba) or (bb) is liable —

(a) in the case of an individual — to a fine not exceeding \$5,000 or to imprisonment for a term not exceeding 6 months or to both; and

(b) in any other case — to a fine not exceeding \$10,000.”.